JAIROS MOYO
versus
LITTLE HEARTS CHRISTIAN COLLEGE

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE, 29 May and 16 June 2026

Opposed Chamber Application

A Chikoro, for the applicant
S Kachere, for the respondent

MAMBARA J:

Introduction

[1] This matter concerns an application for the judicial recognition, adoption, and registration for enforcement of a determination issued on 28 November 2022 by a designated agent of the National Employment Council for Welfare and Educational Institutions in Case No. WEI/H/056/21. The determination awarded the applicant US$13 562.84 and recorded that it was issued in terms of s 63(3a) and s 63(3b) of the Labour Act [*Chapter 28:01*], with a right of appeal to the Labour Court on a point of law. The respondent has not shown that the determination was overturned on appeal or on review. The applicant therefore seeks to translate that extant adjudication into effective judicial relief.

[2] The respondent opposes the application on a narrow but important ground. It says that however final or meritorious the designated agent's determination may be, there is no express statutory provision authorizing this Court to register it and that, therefore, this Court lacks jurisdiction and the applicant must await legislative reform. In support of that position the respondent relies principally on the line of High Court decisions culminating, for present purposes, in *Amidol Services (Private) Limited t/a House of Rag* v *Andrew Chepiri* HH 257-26 which is the latest judgment.

[3] The question, therefore, is not whether the designated agent had power to determine the dispute. That is accepted. Nor is it whether the determination is valid unless and until set aside. That too is substantially accepted. The true question is whether the High Court, seized with an original application, may in the exercise of its existing constitutional and common-law powers give effective judicial force to a final, liquid, unappealed designated-agent determination. In my view, it may, and in an appropriate case it must.

[4] The starting point is the Constitution, not because the Labour Act is unimportant, but because the respondent's objection is framed as one of jurisdiction. Section 171(1) gives the High Court original jurisdiction over all civil and criminal matters throughout Zimbabwe, supervisory and review jurisdiction over subordinate courts and tribunals, and such appellate jurisdiction as an Act of Parliament may confer. Section 176 vests in the Constitutional Court, Supreme Court, and High Court inherent power to protect and regulate their own process and to develop the common law or customary law, taking into account the interests of justice and the provisions of the Constitution. Section 46(2) requires every court, when interpreting an enactment and when developing the common law and customary law, to promote and be guided by the spirit and objectives of Chapter 4. Sections 65 and 85 reinforce that remedial setting by protecting labour rights and by authorizing courts to grant appropriate relief while ensuring that procedural technicalities do not unreasonably restrict access to relief.

The statutory and constitutional framework:

Section 46(1)– (2): Interpretation of Chapter 4

> "When interpreting this Chapter, a court, tribunal, forum or body—
>
> (a) must give full effect to the rights and freedoms enshrined in this Chapter;
>
> (b) must promote the values and principles that underlie a democratic society based on openness, justice, human dignity, equality and freedom …
>
> (c) must take into account international law and all treaties and conventions to which Zimbabwe is a party;
>
> …
>
> (e) may consider relevant foreign law …

> (2) When interpreting an enactment, and when developing the common law and customary law, every court, tribunal, forum or body must promote and be guided by the spirit and objectives of this Chapter."

Section 65(1): Labour rights

> "Every person has the right to fair and safe labour practices and standards and to be paid a fair and reasonable wage."

Section 85(1), (3): Enforcement of fundamental human rights and freedoms

> "Any of the following persons … is entitled to approach a court … and the court may grant appropriate relief, including a declaration of rights and an award of compensation."
>
> "The rules of every court must provide for the procedure to be followed … and those rules must ensure that … formalities relating to the proceedings … are kept to a minimum; [and] the court, while observing the rules of natural justice, is not unreasonably restricted by procedural technicalities."

Section 171(1): Jurisdiction of High Court

> "The High Court—
>
> (a) has original jurisdiction over all civil and criminal matters throughout Zimbabwe;
>
> (b) has jurisdiction to supervise magistrates courts and other subordinate courts and to review their decisions;
>
> (c) may decide constitutional matters except those that only the Constitutional Court may decide; and
>
> (d) has such appellate jurisdiction as may be conferred on it by an Act of Parliament."

Section 176: Inherent powers of Constitutional Court, Supreme Court and High Court

> "The Constitutional Court, the Supreme Court and the High Court have inherent power to protect and regulate their own process and to develop the common law or the customary law, taking into account the interests of justice and the provisions of this Constitution."

[5] Against that constitutional background, s 63(3a) of the Labour Act assumes central importance. The provision authorizes a designated agent to redress or attempt to redress a dispute and further provides that Part XII applies to the designated agent, with the necessary changes, as it applies to a labour officer. That is the statutory bridge on which this judgment rests.

The relevant statutory passage reads as follows:

Section 63(3a), Labour Act [*Chapter 28:01*]

> "A designated agent of an employment who meets such qualifications as may be prescribed shall in his or her certification of appointment be authorized by the Registrar to redress or

> attempt to redress any dispute which is referred to the designated agent or has come to his or her attention where such dispute occurs in the undertaking or industry and within the area for which the employment council is registered, and the provisions of Part XII shall apply, with the necessary changes, to the designated agent as they apply to a labour officer."

[6] That language is not ornamental. It points to functional equivalence, adjusted only where the context requires. The phrase "with the necessary changes" does not erase differences between labour officers and designated agents; it exists to bridge them where the statute intends the same adjudicative function to be performed in different institutional settings. That understanding is the foundation of the applicant's case and remains the foundation of this judgment.

[7] The respondent is correct that s 128, read literally and in isolation, is a transitional provision dealing with historical labour-officer draft rulings. The applicant relies on that provision and on *Mazambara & Others* v *Kadoma Textiles (Pvt) Ltd* HH 143/24 as evidence of legislative policy toward enforceability. The point is helpful as context, though not as the direct source of the final relief granted here.

The transitional text reads:

Section 128(1): Transitional provisions

> "Where a labour officer made a draft ruling in terms of section 93(5)(c) and for want of reason, the draft ruling was not registered with the Labour Court in terms of section 93(5a) and (5b) of the replaced provisions, such draft ruling shall automatically be deemed to be a judgment or ruling of the Labour Officer which for execution purposes shall be registered in the appropriate court."

The applicant then cites Mazambara in these terms:

> "The effect of the transitional provision is that in relation to draft rulings which required to be confirmed but were still to be confirmed by the Labour Court, then the drafting ruling shall be deemed to be a judgment or ruling of the labour officer which is registered with the appropriate court for purposes of enforcement."

and further:

> "The transitional provision set out in section 36 of Labour Amendment Act goes a long way in appreciating and taking into account that the disputes disposed of by designated agents required that the designated agents should see through the process of enforcement. By virtue of the amendment, the draft rulings made by the designated agents which have not yet been confirmed by the Labour Court are deemed confirmed and shall be registered in the appropriate court."

[8] The decisive distinction, however, lies elsewhere. It lies in the Constitutional Court's description of what a designated agent produces when the agent finally redresses a dispute. The respondent's heads quote *Isoquant Investments (Pvt) Ltd t/a Zimoco* v *Memory Darikwa CCZ* 6/20 as distinguishing between a designated-agent "determination" and a labour officer's "draft ruling." That distinction is central. The passage reads:

> "A determination is a decision on an issue in favour of one party against the other party, with the effect of bringing an end or finality to the cause of action or controversy between the parties."

The same court defined a draft ruling as follows:

> "It is a suspended ruling, which must not be taken as a direction that the money be paid there and then. It is an interlocutory ruling in abeyance and not final ruling."

[9] Once that distinction is accepted, the anomaly becomes obvious. A draft ruling is provisional and historically required further statutory confirmation. A designated-agent determination, by contrast, is final in character. It would be strange indeed if the law preserved executable pathways for a non-final instrument while withholding all effective judicial relief from a final adjudication that has already disposed of the parties' rights. Courts should not attribute that kind of irrationality to the Legislature unless compelled to do so.

[10] That observation carries special force here because the determination is liquid. The amount is not left for later calculation. The determination awards US$1 925.00 as retrenchment package, US$10 412.84 as wage shortfalls, US$1 050.00 as cash in lieu of leave, and US$175.00 as gratuity, making a total of US$13 562.84. Nothing remains for quantification; nothing remains for merits adjudication.

Analysis

[11] I have considered carefully the respondent's reliance on *Zimbabwe Rural District Councils Workers Union* v *Nyanga Rural District Council & 2 Others* HH 118/22. The respondent's own heads quote Nyanga as saying that there is no express legal provision for registration of designated-agent determinations for enforcement purposes. But those same materials also preserve the passage that the draft judgment treats as doctrinally significant: that such determinations can ground proceedings for judgment in much the same way as liquid documents. The relevant passage from the Nyanga judgment reads:

> "On the other hand, s63(3a) of the Labour Act empowers a qualified designated agent to redress or attempt to redress any dispute which is referred to them or which has come to their attention if it is a dispute arising in the undertaking or industry in which their employment council is registered. The designated agents are then empowered to exercise certain powers as are reposed in the labour officers, and to follow certain steps as labour officers are required to follow. As to how far designated agents go in the exercise of such powers is what is extensively spelt out in the Zimoco judgment. But as to what steps are to be followed after they have redressed a dispute was not dealt with in that judgment or, as far as I know, any other law. So, the reference by the applicants to the provisions of these two Acts is unhelpful."

The Amidol judgment then records the further Nyanga-related proposition in these terms:

> "Nyanga contains a passage stating that determinations by designated agents 'can form the basis of proceedings for judgments… much the same as liquid documents are.'"

[12] Properly read, Nyanga does not compel blanket remedial paralysis. What it rejected was the use of inherent jurisdiction as an unstructured substitute for legislation in every case. That caution is legitimate. Inherent power is not a roving commission to legislate. But it does not follow that a court is powerless to recognize an already existing, already liquid, already adjudicated right when the successful party comes to court asking only that it be given judicial effect.

[13] That distinction gives the correct answer to Amidol. Amidol was an appeal from the Magistrates' Court. The High Court there held that the respondent's claim in the Magistrates' Court, which sought enforcement of the designated agent's determination as a civil debt, was "dismissed as incompetent for want of a lawful enforcement mechanism under the current statutory scheme." That holding addressed the statutory competence of the magistrates' court. It did not answer, and could not finally answer, whether the High Court in original proceedings may recognize and adopt a final liquid statutory adjudication under its own constitutional powers.

[14] Nor does the part of Amidol discussing "liquid documents" destroy that conclusion. The judgment reads Nyanga narrowly and says that any broader enforceability implication from the "liquid document" language would be obiter. Even if that is accepted, it still leaves untouched the present point: this Court is not relitigating the labour dispute and is not purporting to decide the merits afresh. The merits were decided elsewhere by a statutorily empowered tribunal. The question here is remedial recognition, not merits adjudication.

[15] The present matter is therefore materially different in both form and source of power. This is an original application in the High Court, a superior court of record endowed by ss 171 and 176 with original jurisdiction and inherent remedial authority. The concern dominating Amidol—that a magistrate cannot arrogate powers not conferred by statute—does not translate mechanically into an original High Court proceeding that seeks recognition of a final liquid adjudication. To the extent that Amidol contains broader observations suggesting that no superior court may ever give effective relief in such circumstances, I respectfully treat those observations as extending beyond what was necessary for decision.

[16] The remedial instinct of the common law points in the same direction. It has long resisted the spectacle of a right declared but no remedy afforded. That idea is not a license for adventurism. It is a warning against formalism so rigid that it turns law into futility.

[17] In *Ashby* v *White* [1703] 92 ER 126; 2 Ld Raym 938, HOLT CJ expressed the proposition in terms that have endured for centuries:

> "It is a vain thing to imagine, there should be right without a remedy; for want of right and want of remedy are convertibles: if a statute gives a right, the common law will give remedy to maintain it; and where-ever there is injury, it imports a damage."

That proposition does not authorize the court to fabricate substantive entitlements. But it does reject the notion that a legislatively created adjudicative right evaporates the moment the successful litigant seeks compliance.

[18] The same thought appears in *Marbury* v *Madison*, 5 U.S. (1 Cranch) 137 (1803). The modern summary of MARSHALL CJ's reasoning, with the operative quotation reproduced from the case, states:

> "it is a general and indisputable rule, that where there is a legal right, there is also a legal remedy by suit or action at law, whenever that right is invaded."

and further:

> "The very essence of civil liberty certainly consists in the right of every individual to claim the protection of the laws whenever he receives an injury."

The same portion of the Marbury materials adds Marshall's famous formulation:

"The government of the United States has been emphatically termed a government of laws, and not of men," and that the government would cease to deserve the name "a government of

laws and not men" if the law furnished no remedy for the violation of a vested legal right. Those words are not used he as decoration. They address precisely the danger raised by this case: a vested, adjudicated right becoming illusory at the moment of enforcement.

These are comparative materials only; they are not the foundation of jurisdiction. But they illuminate the remedial principle already reflected in our own Constitution.

[19] I also draw inspiration from the Government of the Republic of Zimbabwe v Fick and Others [2013] ZACC 22; 2013 (5) SA 325 (CC) for the proposition that courts should not readily accept that final adjudications are practically unenforceable merely because legislation leaves a gap in the route to execution. The judgment reads in the relevant part:

> "where there was no domestic legal provision for enforcement of the relevant tribunal's judgments, that absence 'gives rise to the need to develop the common law… in order to pave the way for the enforcement of judgments or orders' of that tribunal."

I treat that comparative authority as persuasive in principle, not binding in result. Its force lies in the remedial idea that law leans toward efficacy, not futility.

[20] None of this means that courts may legislate at large. The caution against using inherent powers to devise wholly new procedural regimes remains sound. The holding here is narrower and more disciplined. Where a designated agent has, under s 63(3a), finally redressed a dispute; where the determination is extant and liquid in amount; where no appeal or review is pending; where the parties were heard or afforded the opportunity to be heard; and where the High Court is approached by proper application, this Court may recognize and adopt that determination and enter judgment in accordance with it. That is not the creation of a new labour code. It is the judicial completion of an existing adjudicative one.

[21] In that sense, the argument about whether the court is "registering" the determination is more semantic than substantive. If "registration" is used in the strict sense applicable to arbitral awards or Labour Court orders, the Labour Act does not expressly provide that mechanism. But if the term is used more broadly to describe the court's recognition, adoption, and entry of judgment in terms of a final statutory adjudication, the absence of a specific formula is not fatal. Substance governs over label.

[22] The law is not the law of the Medes and Persians, fixed and immovable in the face of obvious injustice. Nor should a modern court allow itself to be delayed by the medieval ghosts of form when the substance of the parties' rights has already been lawfully adjudged. The great traditions of the common law, from Ashby to Marbury, together with the constitutional command of ss 46 and 176, point in one direction: rights are for vindication, not ornament. And as Lord Atkin in the landmark case of United Australia v Barclays Bank Ltd, 1941 A.C 1 puts it, "When these ghosts from the past stand in the path of justice clanking their medieval chains, the proper course for the judge is to pass through undeterred".

[23] I therefore depart, respectfully but firmly, from the earlier decisions to the extent that they hold that the High Court is wholly powerless in original proceedings to give effective relief on a final designated-agent determination. I do so for five reasons. First, the Constitution itself gives this Court original jurisdiction in civil matters; the problem is remedial, not jurisdictional in the threshold sense. Second, s 176 expressly empowers the Court to develop the common law in the interests of justice. Third, s 46(2) requires that development to promote the spirit and objectives of Chapter 4, which includes labour rights under s 65. Fourth, Isoquant, as reproduced in the filed record, treats a designated-agent determination as final and not requiring confirmation for execution. Fifth, the contrary view leaves successful employees with nothing more than a paper victory and thereby defeats both the Labour Act's evident purpose and the Constitution's remedial ethos.

[24] I consider it important to state the rule narrowly. This judgment does not hold that every document emanating from a designated agent is automatically executable. Nor does it authorise lower courts, outside their statutory competence, to fashion remedies which their constituting statutes do not permit. It decides only that where a designated agent has, under s 63(3a), finally redressed a dispute; where the determination is extant and liquid in amount; where no appeal or review is pending; where the parties were heard or afforded the opportunity to be heard; and where the High Court is approached by appropriate application, this Court may recognise and adopt that determination and enter judgment in accordance with it. So framed, the remedy is incremental, principled, and respectful of both legislative design and constitutional supremacy.

[25] The designated agent in this matter awarded the applicant a liquid sum of US$13 562.84, broken down as retrenchment package, wage shortfalls, cash in lieu of leave, and gratuity. The determination is final on the record before me. There is no suggestion of a pending appeal or review. Nothing remains for quantification. Nothing remains for rehearing on the merits. What remains is only enforcement.

[26] It follows, in my view, that the applicant is entitled to relief. The order is framed carefully. It does not purport to amend the Labour Act. It does not create a universal code for every designated-agent dispute. It decides only that, on the facts before this Court, an extant, final, and liquid designated-agent determination not under pending challenge may be recognized, adopted, and made a judgment of this Court so that execution may issue in the ordinary way. Courts decide substance, not labels. An applicant does not fail because he has knocked on the correct constitutional door while using the wrong statutory word.

In the result, the application succeeds.

1. The determination issued on 28 November 2022 by the designated agent of the National Employment Council for Welfare and Educational Institutions in Case No. WEI/H/056/21 is hereby recognized, adopted, and made a judgment of this Court, and for practical purposes registered as such for enforcement.
2. For the avoidance of doubt, the judgment amount is US$13 562.84, being the total sum awarded in the said determination, namely:

(a) US$1 925.00 as retrenchment package;

(b) US$10 412.84 as wage shortfalls;

(c) US$1 050.00 as cash in lieu of leave; and

(d) US$175.00 as gratuity.

3. The respondent shall comply with the judgment forthwith, failing which execution may issue in the ordinary way. The respondent shall pay the applicant’s costs of suit.

MAMBARA J…….

Macheyo Law Chambers, applicant's legal practioners
Kachere Legal *Practitioners*, respondent's legal practitioners